

general rules governing contracts (Civ. Code, § 1532), which means that in general “an oral novation may extinguish a written agreement.” (*Bush v. Vernon* (1955) 135 Cal.App.2d 33, 37 [286 P.2d 903].)

The Harringtons’ arguments fail. The cross-complaint alleges that the parties agreed to terminate the lease. (Cross-comp. ¶¶9, 10, 15.) The parties have each provided evidence, through their declarations, regarding whether they agreed to terminate the lease early. On prong two of a special motion to strike, the Court accepts the opposing party’s evidence as true. Thus, while there is a dispute of fact here, the Court accepts Naderi’s evidence for the purpose of showing a probability of prevailing on the merits.

Therefore, the Court finds that Naderi has shown a probability of prevailing on her novation – breach of contract claim based upon the Harringtons’ filing this lawsuit and the motion to strike those allegations is denied.

17. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
***HEARING ON MOTION IN RE: FOR OSC RE SALE OF REAL PROPERTY**
FILED BY:
TENTATIVE RULING:

Continued to April 15, 2026. (See January 20, 2026 minute order.)

18. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
HEARING ON PETITION IN RE: PETITION TO ASSIGN CASE NUMBER AND TO SET REASONABLE DEPOSITION FEE
FILED BY: SILVA, JULIANO
TENTATIVE RULING:

This Petition to assign a case number and set a reasonable deposition fee, and the Motion currently scheduled for February 4, 2026 at 9:00 a.m. to Set Reasonable Deposition Fee for Dr. Robert Rovner are **continued**, *sua sponte*, to March 26, 2026 at 9:00 a.m. in Dept. 10 before Hon. Juila Campins. The hearings calendared for January 28, 2026 and February 4, 2026 at 9:00 a.m. are vacated. No appearance is required.

19. 9:00 AM CASE NUMBER: MSC20-02307
CASE NAME: MCNEAL VS LIBERTY MUTUAL GROUP
HEARING ON ORDER TO SHOW CAUSE IN RE:
FILED BY:
TENTATIVE RULING:

The hearing on this matter is **continued** pursuant to a request and Declaration submitted by Plaintiff Linton McNeal to March 18, 2026 at 9:00 a.m. The clerk of the court shall provide notice of continued hearing to Plaintiff Linton McNeal and to Defendant Kurita Jamison Pratt. No appearances are required on January 28, 2026.